

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LARS B AMBLE,

Petitioner

VS.

ANTONIA TRIVYZA,

Respondent

) Case Number: FMS-16-386886

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Petitioner's April 8, 2026 Order to Show Cause and Affidavit for Contempt was dismissed without prejudice at Petitioner's request on 5/29/26. See Request for Dismissal filed 5/29/26. **No appearances are required on 6/2/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HOAI BAO THUC NGUYEN,

Petitioner

VS.

TRUONG XUAN THI PHAM,

Respondent

) Case Number: FDI-15-784944

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Hoai Bao Thuc Nguyen (Husband) and Truong Xuan Thi Pham (Wife).
- 2) On December 15, 2015, Husband filed a Petition for Dissolution of Marriage, alleging a long-term marriage from February 24, 1981 – July of 2004 for a total duration of 23 years and 4 months.
- 3) On August 31, 2016, Wife filed a Response and Request for Dissolution of Marriage wherein she agreed with the total duration of marriage as stated in the underlying petition.
- 4) On September 9, 2017, the Court issued a pendente lite spousal support order in the amount of \$8000.00 per month, payable by Husband to Wife based upon their agreement. This order was effective the filing date of Wife's Request for Order (i.e., June 22, 2017). See Findings and Order After Hearing filed October 17, 2017.
- 5) On October 17, 2017, the Court entered a Status Only Judgment terminating the parties' marital status.

- 6) On July 10, 2023, Wife filed an Ex Parte Application to Issue an Earnings Assignment Order, alleging Husband owed \$87,900.00 in arrears (not including interest) from the pendente lite spousal support order of \$8000.00 per month payable to Wife by Husband.
- 7) On January 23, 2026, Husband filed a Request for Order seeking modification of spousal support to \$0.00 per month, citing retirement from employment. The matter was set for hearing on April 7, 2026.
- 8) On February 2, 2026, Husband filed a Proof of Service indicating his Request for Order was served on Respondent by personal service on January 29, 2026.
- 9) On April 7, 2026, the Court continued the matter to June 2, 2026, as the Court did not have enough evidence to modify support because Husband failed to file the required Income and Expense Declaration along with his request. Husband was ordered to file and serve an Income and Expense Declaration at least 9 days prior to the next hearing.
- 10) On May 27, 2026, Wife filed a Responsive Declaration requesting the Court maintain the existing order pending evidentiary hearing or, in the alternative, an order for the full amount of arrears to be paid.
- 11) On May 27, 2026, Wife filed Declaration of William Essig, CPA Re: Spousal Support Arrearage and Interest Thereon Owed from Petitioner to Respondent. The declaration states that Husband owes Wife \$135,900.00 in unpaid spousal support and \$50,626.68 in legal interest.

B. Findings and Order

- 1) Husband's request to modify the existing spousal support order is DENIED without prejudice.
- 2) California Rules of Court, Rule 5.20 requires a current Income and Expense Declaration be filed and served along with any Request for Order concerning spousal support.
- 3) The Court previously continued this matter to June 2, 2026 to allow Husband to file a current Income and Expense Declaration 9 days prior to the hearing (i.e., May 25, 2026).
- 4) Husband did not file a current Income and Expense Declaration as ordered.
- 5) In addition, the Court finds Husband comes to Court with "unclean hands" and admonishes Husband that Wife has raised the "disentitlement doctrine."

- 1 6) Should Husband properly refile a Request for Order, which includes all the required supporting
2 documentation, the Court will seriously consider whether Husband can seek any such relief while
3 failing to comply with the Court's existing spousal support order.
4 7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALEXANDER C BECKMAN,

Petitioner

VS.

FELICE GUNAWAN BECKMAN,

Respondent

) Case Number: FDI-19-792126

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER TEMPORARY EMERGENCY ORDER, ORDER REQUIRING ACCESS TO
CHILDREN'S COUNSELING / THERAPY; REQUEST FOR ORDER OF CHANGES CHILDREN
SCHOOLS TO PUBLIC IN SAN CARLOS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alexander C. Beckman (Father) and Respondent Felice Gunawan Beckman (Mother). They share two minor children: Leo Gunawan Beckman (DOB: 07/13/16) and Rose Gunawan Beckman (DOB: 08/08/18).
- 2) On February 18, 2026, Mother filed a Request for Order seeking orders for the sale of 3421 El Camino Real, Unit 38, Atherton, CA. On April 13, 2026, this Request for Order was advanced from May 7, 2026, and continued to June 2, 2026.
- 3) On March 5, 2026, Father filed an emergency Request for Order seeking an order requiring access to children's counseling/therapy. Father requested an emergency order permitting the children to return to therapy immediately. The Court denied Father's request for emergency relief and set the matter for regular hearing on the Court's "Readiness Calendar" on April 13, 2026.

- 4) On March 5, 2026, Mother filed a Responsive Declaration, which has not been read or considered by the Court because the documents were not scanned into the system and were unavailable for the Court's review.
- 5) On March 30, 2026, Mother filed a Request for Order seeking a change in the children's schools to public school in San Carlos (set on the "Readiness Calendar" on May 4, 2026). The parties agreed to continue this Request for Order to be combined with Father's pending Request for Order scheduled for hearing on June 2, 2026.
- 6) On April 13, 2026, the Court set Father's Request for Order (filed ex parte on March 5, 2026) for Family Court Services (FCS) Mediation on May 18, 2026, and set further review hearing on June 2, 2026.
- 7) On April 24, 2026, Father filed a Responsive Declaration in opposition to Mother's request for change of schools to public school in San Carlos, which has been read and considered by the Court. Father asks the Court to deny Mother's request, or in the alternative, order a Brief Focused Assessment on school-choice issue.
- 8) On April 24, 2026, counsel for Father filed a declaration seeking clarification of the Court's intent related to the May 4, 2026 "Readiness Calendar" hearing, which has been read and considered by the Court.
- 9) On May 4, 2026, counsel for both parties appeared, without their clients, and the Court continued Mother's Request for Order regarding the public-school issue to June 2, 2026, to be considered along with the two other pending Request for Orders.
- 10) On May 13, 2026, the parties entered a stipulation regarding the sale of the Atherton property. The stipulation settles the Request for Order filed by Mother on February 18, 2026, and provides for removal of Mother's Request for Order. Accordingly, the issues raised in Mother's Request for Order filed February 18, 2026 are completely resolved.
- 11) On May 18, 2026, Mother filed a Responsive Declaration to Father's Request for Order filed March 5, 2026. Mother asks the Court deny Father's request to allow the children to commence therapy with their prior therapists and issue Family Code section 271 sanctions against Father based on his assertion that the children are "thriving emotionally."

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) Father's request that the children be permitted to return to therapy is DENIED.
- 3) Given Mother's insistence that the Court deny Father's request that the children attend therapy to address her boyfriend's mistreatment of the children, Mother's boyfriend, Nathan, shall NOT be present during Mother's parenting time with the children. Mother shall prevent any and all contact between Nathan and the children. If Mother allows any contact, the Court will view such conduct as detrimental to the children's wellbeing and consider awarding Father sole legal and sole physical custody, including the possibility of agency supervised visitation for Mother.
- 4) Mother's request that the children be permitted to attend public school in San Carlos is DENIED.
- 5) Father shall be responsible for payment of 100% of both children's tuition at their current school: San Francisco Waldorf Grade School. Should Father be unable to pay 100% of both children's tuition, the children shall be immediately enrolled in a public school closes to Father's residence.
- 6) The Court finds the issues raised in Mother's Request for Order filed February 18, 2026 are completely resolved by the stipulation regarding the sale of the Atherton property entered May 13, 2026.
- 7) Counsel for Father shall prepare the Findings and Order After Hearing.
- 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAIANA CHERHYNETS,

Petitioner

VS.

FAROOQ IMAM,

Respondent

) Case Number: FDI-22-796786

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY AND VISITATION BY
RESPONDENT, FAROOQ IMAM CHANGE OF CHILD CUSTODY, VISITATION (PARENTING
TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties to this action are Petitioner Daiana Cherhynets (Mother) and Respondent Farooq Imam (Father). They share one minor child: David Imam (DOB: 09/20/15).
- 2) On March 5, 2026, Father filed a Request for Order seeking modification of the custody and visitation orders. Father seeks joint legal and joint physical custody orders with visitation on a week on/week off basis. The existing orders are from December 16, 2025, and provide for joint legal and joint physical custody. Father's timeshare is on Tuesdays and Thursdays from 3-7 and every other week from Friday at 3:00 p.m. – Tuesday at 7:00 p.m.
- 3) On April 17, 2026, Mother filed a Responsive Declaration in which she requests that the Court:
 - a. Maintain the current parenting plan, pending completion of full child custody evaluation;
and
 - b. Admonish Father again about actively lobbying child about court/custody matters.

4) On April 20, 2026, the Court held a Readiness hearing, and the matter was set for Family Court Services (FCS) Mediation on May 14, 2026 and return hearing on June 2, 2026.

5) On May 19, 2026, Father filed Supplemental Declaration in Response to Petitioner's filed Declaration in which he requests Family Code section 271 sanctions against counsel for alleged lack of cooperation and undermining proceedings. This declaration has been read and considered by the Court.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) The Court confirms its prior order that both parents share joint legal and joint physical custody.

3) Father's request for a modification of the existing parenting plan is GRANTED.

4) Effective immediately, the parties shall exercise a week on/week off parenting plan.

5) Exchanges shall occur on Sundays at 5:00 p.m. The receiving parent shall pick up the minor child for his/her parenting time from the other parent.

6) Father's first week shall commence on Sunday, June 7, 2026 at 5:00 p.m.

7) Mother's request that the Court order an Evidence Code section 730 child custody evaluation is DENIED.

8) All prior orders, not in conflict with the orders herein, shall remain in full force and effect.

9) Counsel for Mother shall prepare the Findings and Order After Hearing.

10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HANEN BOUZIDI,

Petitioner

VS.

RIADH BOUZIDI,

Respondent

) Case Number: FDI-23-798390

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Hanen Bouzidi (Mother) and Respondent Riadh Bouzidi (Father). They share two minor children: Yasmin Bouzidi (DOB: 04/26/17) and Ilyes Bouzidi (DOB: 06/07/15).
- 2) On March 20, 2026, Father filed a Request for Order seeking joint legal and joint physical custody of the children. In addition, Father seeks to modify the existing parenting plan and requests the Court enforce its order that neither parent may travel with the children outside of the United States without the permission of the other parent. Per the existing orders (dated 03/27/24), Mother has sole legal and sole physical custody of the minor children and Father has parenting time every Wednesday from 8:00 a.m. to Thursdays at 7:30 p.m. with pick-up and drop-off at Mother's home. Father specifically requests that his parenting time be modified to Friday after school through Sundays at 10:00 a.m.
- 3) On April 20, 2026, the Court held a Readiness hearing and scheduled the matter for Family Court Services (FCS) Mediation on May 28, 2026 and a return hearing on June 2, 2026.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court notes that a Proof of Service on Father's Request for Order has not been filed with the Court; however, both parties appeared at the Readiness hearing and completed orientation. It does not appear that the missing proof of service was raised by either party at that hearing. As such, the Court finds good cause to proceed unless Mother informs that Court that she was not served.
- 3) Father's request for joint legal and joint physical custody is DENIED.
- 4) Father's request for modification of the existing parenting plan is GRANTED. Commencing June 2, 2026, Father's parenting time shall occur every Friday after school (or if no school then beginning at 5:00 p.m.) until Sunday at 10:00 a.m., on the 1st, 2nd and 4th weekends of each month. The 1st weekend of the month is defined as the first weekend of the month that contains a Saturday. Father shall transport the children to and from his parenting time.
- 5) Father's request that neither parent shall travel outside of the United States with the minor children unless they have received written permission from the other parent is GRANTED. If written permission is not received, neither parent is authorized to travel with the children outside of the United States.
- 6) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.
- 7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YUEPING FENG,

Petitioner

VS.

ZHU ZHAN MIAO,

Respondent

) Case Number: FDI-24-800492

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDRE CHANGE OF CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Yueping Feng and Respondent Zhu Zhan Miao. They share two minor children: Daniel Miao (age 10) and Patricia Miao (age 7).
- 2) On March 27, 2026, Respondent filed a Request for Order seeking to modify the existing child support order, citing a change in circumstance. Respondent alleges the existing order is based on a 1% timeshare; however, since March 15, 2026, the parties have been exercising an equal parenting plan.
- 3) On March 27, 2026, Respondent filed an Income and Expense Declaration, which contains the following relevant information:
 - a. Income: \$5373.00 Salary; \$703.00 Overtime
 - b. Filing Status: Single – 1
 - c. Mandatory Retirement: \$451.00/month
 - d. Health Insurance Premiums: \$45.00/month
 - e. Timeshare: 50%

1 4) There is no Proof of Service on File indicating Respondent's Request for Order and Income and
2 Expense Declaration were served on Petitioner.

3 5) Petitioner did not file a Responsive Declaration.

4 **B. Findings and Order**

5 1) The Court finds good cause to **CONTINUE the hearing to July 16, 2026 at 9:00 a.m. in**
6 **Department 403** to permit Respondent time to effectuate service as required by Code of Civil
7 Procedure section 1005(b).

8 2) At least 16 Court days prior to the next hearing date, Respondent shall file and serve on Petitioner
9 the (a) Request for Order and Income and Expense Declaration, (b) Continuance Order contained
10 herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of
11 Civil Procedure (i.e., a person over the age of 18 shall mail to Petitioner the (a) Request for Order
12 and Income and Expense Declaration, (b) Continuance Order, and (c) Tentative Ruling
13 Instructions, and then Respondent shall file form FL-335 (Proof of Service) with the Court
14 confirming service was effectuated).

15 3) At least 9 Court days prior to the next hearing date, Petitioner may file and serve a Responsive
16 Declaration.

17 4) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply
18 Declaration.

19 5) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEPHANIE TRAMICHECK,

Petitioner

VS.

ALEXANDER CASSASSOVICI,

Respondent

) Case Number: FDI-25-800898

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER PROPERTY CONTROL, AND MODIFY ATRO RE: HEALTH
INSURANCE; ENFORCE PDD

TENTATIVE RULING

The hearing on Respondent Alexander Cassassovici's Request for Order filed 3/26/26 is **CONTINUED to 7/28/26 at 9 AM in Dept. 403** by agreement of the parties. See Request to Reschedule Hearing filed by Respondent on 5/7/26 and Request to Reschedule Hearing filed by Petitioner on 5/13/26. **No appearances are required on 6/2/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KENT PENWELL,	)	Case Number: FDI-25-801720
Petitioner	)	Hearing Date: June 2, 2026
VS.	)	Hearing Time: 9:00 AM
REAGAN PENWELL,	)	Department: 403
Respondent	)	Presiding: BOBBY P. LUNA

REQUEST FOR ORDER MOTION TO QUASH SUBPOENA TO VERIZON WIRELESS SERVICE, LLC

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHN D EVELAND,

Petitioner

VS.

WILLIAM T BALDWIN JR,

Respondent

) Case Number: FDI-25-802148

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL, HOME
TO BE LISTED FOR SALE AND THE PROCEEDS HELD IN TRUST

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner John D. Eveland and Respondent William T. Baldwin Jr.
- 2) On 11/4/25, Petitioner filed a Petition for Dissolution of Domestic Partnership.
- 3) On 3/2/26, Petitioner filed a Proof of Service of Summons indicating personal service was effectuated on 1/2/26.
- 4) Respondent did not file a Response.
- 5) On 5/1/26, Petitioner filed an ex parte Request for Order seeking to compel the sale of the real property located at 877 Montecito Drive, Los Angeles, CA 94131 (the home). Petitioner asserts that he purchased the home prior to the parties becoming registered domestic partners and paid the mortgage in full until 2020 when the parties added Respondent to the title and began jointly paying the mortgage. Petitioner states he had to move out of the home due to his poor health condition, which requires he reside in a supportive care home in San Francisco. Petitioner claims that Respondent continues to reside in the home and refuses to sell it; however, funds to pay the

1 mortgage and carrying costs are depleted. Petitioner further asserts that he received notice the
2 mortgage has not been paid since November of 2025 and the home is at risk of foreclosure and
3 waste (hoarding and rodent infestation). Petitioner states both parties are of advanced age (early
4 80s) and cannot care for the home. Petitioner requests the Court order Respondent to vacate the
5 home within 30 days and immediately list the home for sale with Petitioner authorized to select
6 the relator.

7 6) On 5/1/26, the Court denied Petitioner's request for emergency relief and set the matter on
8 shortened time on 6/2/26. The Court made a finding that the ex parte Request for Order was
9 served on Respondent.

10 7) On 5/28/26, Petitioner filed a Proof of Service indicating the ex parte Request for Order was
11 served on Respondent by personal service on 5/22/26.

12 8) Respondent did not file a Responsive Declaration.

13 **B. Findings and Order**

14 1) Family Code section 2108 provides the Court's authority "to order the liquidation of community
15 or quasi-community assets to avoid unreasonable market or investment risks" upon a showing of
16 good cause; however, the Court is prohibited from doing so unless "the appropriate declaration of
17 disclosure has been served by the moving party."

18 2) The Court finds Petitioner made a showing of good cause; however, Petitioner did not file a
19 Declaration Regarding Service of Declaration of Disclosure and Income and Expense Declaration
20 (form FL-141) as mandated by Family Code section 2104. Therefore, the requirement for the
21 moving party to serve the appropriate disclosures under Family Code Section 2108 has not been
22 met.

23 3) Accordingly, this hearing is **CONTINUED to 7/16/26 at 9 AM in Dept. 403.**

24 4) At least 10 days in advance of the hearing, Petitioner shall complete his preliminary declaration
25 of disclosure by:

- 26 a. Serving on Respondent all of the following: Preliminary Declaration of Disclosure (form
27 FL-140), current Income and Expense Declaration (form FL-150), completed Schedule of
28 Assets and Debts (form FL-142) or Community and Separate Property Declarations
29 (form FL-160) with appropriate attachments, all tax returns filed by the party in the two

1 years before service of the preliminary disclosures, and all other required information
2 under Family Code section 2104.

- 3 b. Filing Declaration Regarding Service of Declaration of Disclosure and Income and
4 Expense Declaration (form FL-141) with the Court.
5 5) The Court will prepare the Findings and Order After Hearing.
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